

COMMISSION IMPLEMENTING REGULATION (EU) 2015/141

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COMMISSION IMPLEMENTING REGULATION (EU) 2015/141

of 29 January 2015

amending Implementing Regulation (EU) No 367/2014 setting the net balance available for EAGF expenditure

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) No 1306/2013 of the European Parliament and of the Council of 17 December 2013 on the financing, management and monitoring of the common agricultural policy and repealing Council Regulations (EEC) No 352/78, (EC) No 165/94, (EC) No 2799/98, (EC) No 814/2000, (EC) No 1290/2005 and (EC) No 485/2008 (1), and in particular Article 16(2) thereof,

Whereas:

(1)

Commission Implementing Regulation (EU) No 367/2014 (2) sets the net balance available for European Agricultural Guarantee Fund (EAGF) expenditure, as well as the amounts available for the budget years 2014 to 2020 for the European Agricultural Fund for Rural Development (EAFRD), pursuant to Articles 10c(2), 136, 136a and 136b of Council Regulation (EC) No 73/2009 (3) and to Articles 14 and 66(1) of Regulation (EU) No 1307/2013 of the European Parliament and of the Council (4).

(2)

In accordance with Article 7(2) of Regulation (EU) No 1307/2013, the estimated product of the reduction of payments notified by Member States and referred to in Article 11(6) of that Regulation is to be made available as Union support for measures under rural development programming financed under the EAFRD as specified in Regulation (EU) No 1305/2013 of the European Parliament and of the Council (5). The relevant national ceilings were adapted through Commission Delegated Regulation (EU) No 1378/2014 (6).

(3)

In accordance with the third subparagraph of Article 136a(1) of Regulation (EC) No 73/2009 and the third subparagraph of Article 14(1) of Regulation (EU) No 1307/2013, Belgium, the Czech Republic, Denmark, Germany, Estonia, Greece, the Netherlands and Romania notified the Commission by 1 August 2014 of their decision to transfer a certain percentage of their annual national ceilings of direct payments for calendar years 2015 to 2019 to rural development programming financed under the EAFRD as specified in Regulation (EU) No 1305/2013. The relevant national ceilings were adapted through Delegated Regulation (EU) No 1378/2014.

(4)

In accordance with the third subparagraph of Article 136a(2) of Regulation (EC) No 73/2009 and the third subparagraph of Article 14(2) of Regulation (EU) No 1307/2013, Hungary notified the Commission by 1 August 2014 of its decision to transfer to direct payments a certain percentage of the amount allocated to support for measures under rural development programming financed under the EAFRD in the period of 2016 to 2020 as specified in Regulation (EU) No 1305/2013. The relevant national ceilings were adapted through Delegated Regulation (EU) No 1378/2014.

(5)

In accordance with Article 3(1) of Council Regulation (EU, Euratom) No 1311/2013 (7), the sub-ceiling for market related expenditure and direct payments of the multiannual financial framework set out in Annex I to that Regulation shall be adjusted under the technical adjustment provided for in Article 6(1) of that Regulation following the transfers between the EAFRD and direct payments.

(6)

Implementing Regulation (EU) No 367/2014 should therefore be amended accordingly,

HAS ADOPTED THIS REGULATION:

Article 1

Implementing Regulation (EU) No 367/2014 is amended as follows:

(1)

Article 1 is replaced by the following:

‘Article 1

The net balance available for European Agricultural Guarantee Fund (EAGF) expenditure, pursuant to Articles 10c(2), 136, 136a and 136b of Regulation (EC) No 73/2009 and to Articles 7(2), 14 and 66(1) of Regulation (EU) No 1307/2013, is set out in the Annex to this Regulation.’

;

(2)

the Annex is replaced by the text in the Annex to this Regulation.

Article 2

This Regulation shall enter into force on the seventh day following that of its publication in the Official Journal of the European Union.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 29 January 2015.